

**BEFORE THE BEHAVIORAL HEALTH PROFESSIONALS BOARD
OF THE STATE OF IOWA**

IN THE MATTER OF

Michelle Stewart-Sandusky

License No. 000368

RESPONDENT

**CASE NOS.: 23-0145, 23-0272, 24-0237,
24-0243, 24-0287**

DIAL NO.: 26DBBH0013

**SETTLEMENT AGREEMENT AND
FINAL ORDER**

COMES NOW the Iowa Board of Behavioral Health Professionals (“Board”) and Michelle Stewart-Sandusky (“Respondent”), pursuant to Iowa Code sections 17A.10(2), 272C.3(4), and chapter 154D, enter into this Settlement Agreement and Final Order (“Settlement Agreement”).

1. **Iowa License.** Respondent was issued Iowa marital and family therapist license 000368 on March 12, 2015. Respondent’s Iowa marital and family therapist license is active and will next expire on September 30, 2026.

2. **Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code chapters 17A, 147, 154D, and 272C and 481 Iowa Administrative Code chapter 882.

A. STIPULATIONS

3. **Practice Setting:** Respondent is an Iowa licensed marital and family therapist who practiced in Des Moines, Iowa during the time relevant to these allegations. Respondent currently lives in the State of Iowa.

4. **Statement of Charges:** On May 13, 2026, the Iowa Board of Behavioral Health Professionals found probable cause to file a Notice of Hearing and Statement of Charges in this matter alleging Respondent was convicted of an offense that directly relates to the duties and responsibilities of the profession in violation of 481 Iowa Administrative Code rule 504.2(9).

5. **Allegations:** On March 10, 2025, Respondent pled guilty to insurance fraud, a class D felony. The underlying conduct involved forging a financial document in order to get Respondent's business's group health care insurance reinstated. Respondent was sentenced to five years of probation in an Order dated April 21, 2025.

B. SETTLEMENT AGREEMENT

6. Respondent acknowledges that the allegations stated above, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Settlement Agreement.

7. To resolve this matter without proceeding to hearing, Respondent agrees to the conditions as specified in Section C: Final Order.

8. In entering this Settlement Agreement, Respondent acknowledges the following:

- a. This Settlement Agreement is subject to the approval of the Board and will have no force or effect if it is not accepted by the Board.
- b. Counsel for the State will present this Settlement Agreement to the Board *ex parte*.
- c. I have the right to be represented by counsel in this matter.
- d. I understand I have an opportunity to be heard and to contest the allegations against me in a formal hearing before the Board and that, by waiving the formal hearing, I waive my right to challenge the allegations against me and all attendant rights, including the right to seek judicial review of the Board's actions.
- e. I waive my ability to review the investigative file in this case.
- f. I understand this Settlement Agreement will be part of my permanent licensure file and may be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
- g. I am voluntarily entering into this Settlement Agreement.

- h. Failure to comply with the provisions of this Settlement Agreement shall be grounds for further disciplinary action pursuant to Iowa Code § 272C.3(2)(a).
 - i. I understand the Board is required by federal law to report this Settlement Agreement to the National Practitioner Databank. The report to the database will reflect the language included in this Order.
 - j. I understand I am responsible for all expenses incurred to comply with the conditions and requirements of this Settlement Agreement.
9. Respondent shall submit a copy of this Settlement Agreement to all licensing boards where Respondent holds a license, whether active or not, within **THIRTY days** of the date of the Board approval of this Settlement Agreement.
10. This Settlement Agreement constitutes discipline against Respondent and is the final agency action in a contested case pursuant to Iowa Code section 17A.10.
11. Failure to comply with the provisions of this Settlement Agreement shall be grounds for further disciplinary action pursuant to Iowa Code section 272C.3(2)(a).
12. This Settlement Agreement shall not preclude the Board from taking additional action against Respondent should Respondent violate laws, rules, or standards of practice administered by the Board in the future.
13. This Settlement Agreement becomes a public record available for inspection and copying upon execution in accordance with the requirements of Iowa Code Chapters 17A, 22, and 272C.
14. This Settlement Agreement is subject to approval of the Board. If the Board fails to approve this agreement it shall be of no force or effect to either party.
15. The Board's approval of this Settlement Agreement shall constitute a **Final Order** of the Board.

C. FINAL ORDER

WHEREFORE, the terms of this Settlement Agreement are agreed to by the Iowa Board of Behavioral Health Professionals and the Respondent.

IT IS THEREFORE ORDERED,

a. **CONTINUING EDUCATION:** Respondent shall complete a Board-approved “Ethics and Professionalism” ME-15 one-day course offered through PBI Education, or similar course approved by the Board, within six (6) months of the date of this Order unless an alternate timeline is agreed upon by the Executive Officer of the Board. These hours shall be in addition to any continuing education required by law for license renewal. Respondent is solely responsible for all costs associated with obtaining these hours.

b. **PROBATION AND MONITORING:** Respondent is hereby placed on **PROBATION** and required to enter the Board monitoring program for a period of **THIRTY SIX (36) MONTHS**, subject to the following terms and conditions:

i. **Practice Monitoring Program :** Within ten (10) days of this Order, Respondent shall establish a monitoring program with Marvin Firch, Monitoring Coordinator/Case Manager, 6200 Park Avenue Suite 100, Des Moines, IA 50321, who may be reached by phone at 515-281-5525 or email at marvin.firch@dia.iowa.gov. The Practice Monitoring Program shall have the following conditions:

1. Respondent shall submit for Board approval the name and CV of one or more Iowa licensed marital and family therapists to serve as a practice monitor subject to the terms and conditions of this Order.
2. The Board shall provide a copy of all Board orders relating to this

matter to the practice monitor.

3. The practice monitor shall provide a written statement indicating that they have read and understand this Order and agrees to serve under the terms of this Order.
4. During each quarter, the practice monitor shall review at least ten (10) of Respondent's cases. The practice monitor shall perform a records review and quality assurance process with the following concerns in mind: ethics, competency, records, and billing.
5. The practice monitor and Respondent shall check-in weekly (virtually, telephonically, or in-person) and shall meet in-person as needed to discuss any areas of concern described above.
6. Respondent and the practice monitor shall engage in a quality assurance process to ensure that Respondent fully conforms to the acceptable and prevailing standard of care in the practice of marital and family therapy in Iowa.
7. The practice monitor shall inform the Board immediately if there is evidence of improper practice or a violation of the terms of this Order.
8. The practice monitor may be asked to appear before the Board in-person, or by telephone or video conferencing. Such appearances shall be subject to the waiver provisions of Iowa Administrative Code rule 481—503.7.
9. The practice monitor shall inform the Board immediately if there is

evidence of professional incompetency, ethical violations, improper record keeping, improper billing, or any violation of the terms of this Order or the laws and rules governing the practice of psychology in Iowa.

10. Respondent shall ensure that the practice monitor submits quarterly reports to the Board not later than January 20th, April 20th, July 20th, and October 20th of each year of this Order. The quarterly reports shall set forth the practice monitor's conclusions and observations regarding Respondent's practice, any recommendations the monitor has made to Respondent during the relevant quarter, and an opinion whether Respondent has met the acceptable and prevailing standard of care during the reporting period.

- ii. **Quarterly Reports:** Respondent shall file sworn quarterly reports attesting to her compliance with all the terms and conditions of this Order. The reports shall be filed not later than January 20th, April 20th, July 20th, and October 20th of each year of Respondent's probation.
- iii. **Board Appearances:** Respondent shall make an appearance before the Board upon request. Respondent shall be given written notice of the date, time and location for the appearances. Such appearances shall be subject to the waiver provisions of Iowa Administrative Code rule 481—503.7.
- iv. **Absence of Practice Monitor—Prohibition of Practice:** Respondent agrees not to practice under Respondent's Iowa marital and family therapist

license unless a Board approved practice monitor is actively engaged with Respondent pursuant to the terms of this Order. In the event a practice monitor is unable to continue to serve in that role, Respondent must take the appropriate and immediate efforts to notify the Board and secure a new Board approved practice monitor. If no practice monitor is in place, Respondent must discontinue the practice of marital and family therapy in Iowa until a new practice monitor has been approved by the Board. This does not apply to situations where the Practice Monitor(s) is unavailable for short durations, such as vacations.

- v. During the period of probation Respondent shall not operate an independent practice. Respondent must work within an agency setting during the probationary period.
- vi. During the probationary period Respondent shall not supervise any new individuals that she is not currently supervising at the time this Settlement Agreement is executed. Respondent may continue to supervise those individuals that she is currently supervising in consultation groups. Respondent shall not be the exclusive supervisor to those individuals she is currently supervising.

FOR THE RESPONDENT:

Voluntarily agreed to and accepted by Michelle Stewart-Sandusky on this 24th day of July, 2026.

Michelle StewartSandusky

Michelle StewartSandusky (Jul 24, 2026 13:10:52 CDT)

By: Michelle Stewart-Sandusky, Respondent

FOR THE IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS:

Voluntarily agreed to and accepted by the **IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS** on this 28th day of July, 2026.

Aaron L Culley, L.D.S.W.

Aaron Culley, Chair
Iowa Board of Behavioral Health Professionals